

OPOAM 3016.505-90(a)(2)(ii)
Justification for Exception to Fair Opportunity
Exceeding the SAT pursuant to FAR 16.505(b)(2)(i)(B)

JEFO No.: FY25-096

Date: 03/28/2025

PR Number: 192125R11GRDP1321

1. Agency and Contracting Activity. Identification of the agency and the contracting activity, and specific identification of the document as a “Justification for an Exception to Fair Opportunity.”

The Department of Homeland Security (DHS), Office of Procurement Operations (OPO), Federal Protective Service Acquisitions Division (FPSAD), prepared this Justification for an Exception to Fair Opportunity.

2. Nature and/or description of the action being approved.

DHS/OPO/FPS AD intends to extend task order 70RFP219FREC00135, Master Security Company LLC., without considering other awardees under the FPS Multiple Award Contract for Protective Security Officer (PSO) services pursuant to FAR 16.505(b)(2)(i)(B).

3. A description of the supplies or services required to meet the agency’s need (including the estimated value).

Protective Security Officer (PSO) services are required at locations (detailed in Paragraph 5 below) throughout Rockville, Maryland. The estimated value for the 6-month extension period (04/01/2025-09/30/2025) is approximately \$5.6 million.

4. Identify the exception to fair opportunity and supporting rationale, including a demonstration that the proposed contractor’s unique qualifications or the nature of the acquisition requires use of the exception cited.

FAR 16.505(b)(2)(i)(B). Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

Rationale:

Task Order 70RFP219FREC00135 was awarded to Master Security Company, LLC (Master Security) on September 30, 2019, under contract 70RFP218DEC000016 for PSO services at locations throughout Rockville, Maryland covering the period of performance of 10/01/2019-9/30/2023. All Multiple Award Contract (MAC) awardees were given a fair opportunity to be considered for the original order. A Class Determination and Findings (D&F) was approved by the Procuring Activity Advocate for Competition (PAAC) on 09/13/2023 to exercise the 6-month option period pursuant to Federal Acquisition Regulation (FAR) 17.207, “Exercise of Options,” and clause FAR 52.217-8, “Option to Extend Services” for five MAC Contracts (70RFP218DEC000012, 70RFP218DEC000014, 70RFP218DEC000015,

OPOAM 3016.505-90(a)(2)(ii)
Justification for Exception to Fair Opportunity
Exceeding the SAT pursuant to FAR 16.505(b)(2)(i)(B)

70RFP218DEC000016, and 70RFP218DEC000018). The period of performance covered under the D&F is October 1, 2023- March 31, 2024.

A Class Justification & Approval (J&A) for Other than Full and Open Competition was approved by the Head of the Contracting Activity on March 26, 2024, to extend the same five MAC Contracts from April 1, 2024 – September 30, 2024.

A Justification for Exception to Fair Opportunity exceeding the SAT pursuant to FAR 16.505(b)(2)(i)(B) (JEFO FY24-00117) was approved by the Deputy Head of the Contracting Activity on 03/28/2024 to extend Task Order 70RFP219FREC00135 for the period 04/01/2024 – 09/30/2024.

A Class Justification & Approval (J&A) for Other than Full and Open Competition was approved by the Head of the Contracting Activity on 09/26/2024 to extend the ordering period under contract 70RFP218DEC000016 with Master Security from October 1, 2024 – March 31, 2025.

A Justification for Exception to Fair Opportunity exceeding the SAT pursuant to FAR 16.505(b)(2)(i)(B) (JEFO FY24-00117) was approved by the Deputy Head of the Contracting Activity on 09/27/2024 to extend Task Order 70RFP219FREC00135 for the period 10/01/2024 – 03/31/2025.

An additional Justification & Approval (J&A) (FY25-095) for Other than Full and Open Competition has been routed to OPO concurrently with this JEFO to extend the ordering period under contract 70RFP218DEC000016 with Master Security from April 1, 2025 – September 30, 2025.

Master Security's current task order, 70RFP219FREC00135, must be extended for a period not to exceed six (6) months to continue PSO services in MD allowing time to recompet the follow on task order (TO) under the new FPS' small business MAC for PSO services and to provide the new awardee an appropriate transition period.

Due to extensive screening, training, health, licensing, and transition requirements for PSOs under the FPS program, award to another PSO firm cannot immediately be made. If a new PSO firm were to immediately replace Master Security under this effort, a significant and severe drop in overall security would result and Federal Government personnel, visitors, and assets would be put in jeopardy. Another contractor would need to complete a transition period to obtain all necessary licenses, training, and other requirements for its PSOs in order to be able to stand post. The estimated cost for an additional six (6) months of service under this task order is \$5.6 million. If this task order is not extended, FPS AD will suffer potentially large dollar impacts and delays. Issuance of a short-term task order to another company would result in substantial delay and duplication of startup costs, including new weaponry, uniforms, weapons permits and other equipment that is best amortized over longer service periods. Master Security is familiar with the post requirements and these locations and is the only contractor at this time

OPOAM 3016.505-90(a)(2)(ii)
Justification for Exception to Fair Opportunity
Exceeding the SAT pursuant to FAR 16.505(b)(2)(i)(B)

that can immediately fulfill the requirement without delay and financial injury to the Government.

5. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

The existing task order (70RFP219FREC00135) that needs to be extended is reflected in the chart below to include the proposed bill rates for the 6-month extension, total current value, and estimated value for the 6-month extension. Note that the vendor has agreed to continue providing services under this extension at the existing PSO and Supervisory PSO bill rates.

Contract/ Task Order	Contractor	Address /Building	PSO Rate	Supervisory PSO Rate	Current Total & Estimated Value
70RFP218DEC000016 70RFP219FREC00135	Master Security	[REDACTED]	[REDACTED]	[REDACTED]	[REDACTED] (Approx. \$5.6M for 6 months)
		[REDACTED]	[REDACTED]	[REDACTED]	
		[REDACTED]	[REDACTED]	[REDACTED]	

The price analysis table below shows comparison in pricing from different contracts that were awarded for PSO Armed Guard Services for FPS Region 11 (i.e. National Capital Region (NCR)) to the prices proposed by Master Security for the six (6) month extension period. All contracts have similar statements of work as they are all for Armed Protective Security Officer (PSO) Services and predominantly operate within the National Capital Region (NCR).

Contractor	Contract / Task Order Numbers	Locations	PSO/Supervisory Services Hourly Rate	Difference
------------	----------------------------------	-----------	---	------------

OPOAM 3016.505-90(a)(2)(ii)
Justification for Exception to Fair Opportunity
Exceeding the SAT pursuant to FAR 16.505(b)(2)(i)(B)

Master Security (Current Contract)	70RFP218DEC000016 (Task Order 70RFP219FREC00135)	MD		N/A
Simmons & Golden Security	70RFP223DEC000002	MD		
Triple Canopy	70RFP224DEC000011- (Task Order 70RFP225FREC00012)	MD		
First Coast Security Solutions	70RFP224DEC000005 (Task Order 70RFP224FREC00039)	MD		

Master Security's proposed rates for the extension period 04/01/2025 through 09/30/2025 were compared to the rates established under similar contracts supporting FPS Region 11 (i.e. PSO contracts in the NCR). The reflected differences in red in the table above demonstrate that the negotiated rate with Master Security is below the rates for similar contacts in the same geographic area.

Overall, based on the detailed analysis above, the basic hourly rates are in line with the current range of prices for similar services across the National Capital Region and the anticipated cost to the Government is determined to be fair and reasonable.

6. Any other facts supporting the justification.

Due to unexpected delays throughout the pre-solicitation process, the government requires additional time to complete the procurement prior to issuing the award of the follow-on task order, which requires a minimum of a 60-day transition period. Unexpected and unavoidable delays occurred due to the following circumstance: The follow-on procurement is still currently in the pre-solicitation phase. The FPS Region 11 Program Office is still finalizing the re-compete package for this effort as that office is re-validating with the stakeholder (NIH) the required post

OPOAM 3016.505-90(a)(2)(ii)
Justification for Exception to Fair Opportunity
Exceeding the SAT pursuant to FAR 16.505(b)(2)(i)(B)

coverage for this recompet. This circumstance necessitates the extension of the incumbent task order for PSO services in Maryland to allow for the solicitation, evaluation, and award of the follow-on MAC task TO and the required transition period.

7. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made.

FPS AD is preparing to solicit a competitive task order for this requirement under the new soon to be awarded small business MAC, which will have an ordering period commencing June 1, 2025. The follow-on TO requirement is estimated to be awarded on or before August 1, 2025, with an anticipated performance start date on or before October 1, 2025.

8. DHS intends to post this requirement on SAM.gov pursuant to FAR 16.505(b)(2)(ii)(D).

OPOAM 3016.505-90(a)(2)(ii)
Justification for Exception to Fair Opportunity
Exceeding the SAT pursuant to FAR 16.505(b)(2)(i)(B)

9. Technical/Requirements Personnel Certification.

Pursuant to FAR 16.505(b)(2)(ii)(B)(9), I certify that this requirement meets the Government's minimum need and that the supporting data, which form a basis for the justification, are accurate and complete.

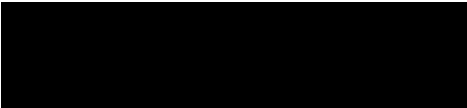

3/28/2025

Date

Technical Representative/COR

10. Contracting Officer Certification and Approval

Pursuant to FAR 16.505(b)(2)(ii)(B)(8), I certify that this justification is accurate and complete to the best of my knowledge and belief.


03/28/2025

Date

Contracting Officer

11. Approval.

I hereby determine that the circumstance in FAR 16.505(b)(2)(i)(B) applies.



Date

Procurement Activity Advocate for Competition or Designee
Office of Procurement Operations